

SANCHEZ v SENDER'S MARKET, INC., et al

24CV47302

**DEFENDANT'S MOTION TO COMPEL PLAINTIFF
RESPONSES TO REQUEST FOR PRODUCTION OF
DOCUMENTS, SET TWO, AND SANCTIONS**

This is a breach of contract claim brought by Cynthia Sanchez ("Plaintiff") against a variety of defendants, including Roth Industries, Inc. ("Roth.")

Now before the Court is Roth's motion to compel. The motion is unopposed.

On February 11, 2026, Roth served Plaintiff with Requests for Production of Documents, Set Two ("RPD2) (Declaration of Oliver J. Larrivee ("Larrivee Decl.") ¶ 2.) Responses were due on March 17, 2026, but to date no responses have been received and Plaintiff has not requested an extension. (*Id.* ¶ 4.) Roth's counsel attempted to meet and confer with Plaintiff's counsel via email and unilaterally extended the response time to April 6, 2026. (*Id.* ¶ 5, Ex. C.) It is unclear whether Plaintiff's counsel responded, but either way, no responsive documents or answers were provided. (*Id.* ¶ 6.)

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response, then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Plaintiff was properly served with RPD2 and failed to respond. She has also not filed any opposition which may be deemed consent to granting the motion. (Cal. Rules of Court 8.54(c).)

Roth's counsel seeks sanctions in the amount of \$866.74 based on 3.2 hours of work (at \$250 per hour) and a \$66.74 filing fee. The Court must impose sanctions in the amount of \$1,000 for the failure to provide responses to RPDs. (Code Civ. Proc. § 2023.050(a).) The Court may impose sanctions even where, as here, there has been no opposition filed. (Cal. Rule of Court 3.1348.)

Accordingly, the motion to compel responses to RPD2 is **GRANTED**. Plaintiff shall provide code-compliant, objection-free responses within twenty (20) days of this Order.

Additionally, Plaintiff is ordered to pay **sanctions in the amount of \$1,000.00** within twenty (20) days of this Order.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order.

BLAKE, et al v SAN ANDREAS SNF OPERATIONS, LLC, et al

24CV47533

**PLAINTIFF’S MOTION TO STRIKE ANSWER;
DEFENDANTS’ MOTION TO COMPEL COMPLIANCE
WITH SETTLEMENT AGREEMENT**

This civil action involves claims for elder abuse, neglect, and wrongful death brought by Linda Cooper, Barry Blake, Arthur Blake, Virginia Blake (as successor in interest to Glenn Blake), as individuals and as successors in interest to their mother, Decedent Thelma Blake (“Decedent”) (collectively, “Plaintiffs”) against multiple Defendants.

Now before the Court is Plaintiff’s motion to strike the Answer filed by Avalon Care Center – San Andreas, LLC, Avalon Care LLC, Avalon Health Care, Inc., Avalon Holding, Inc., Avalon Health Care Management, Inc. and Charles Kirton (“Avalon Defendants.”) Simultaneously, there is a motion to compel compliance with settlement agreement filed by Defendants.

I. Factual and Procedural Background

A. Background Facts

At all relevant times, the Decedent was a 96-year-old woman who qualified as an “elder” under Welfare and Institutions Code section 15610.27. (Complaint ¶ 10.) Defendant San Andreas SNF Operations LLC dba Golden San Andreas Care Center (“Care Center”) was in the business of providing continuous skilled nursing care as a twenty-four-hour facility as defined in 72103 of Title 22 of the California Code of Regulations and California Health and Safety Code section 1250(c). (*Id.* ¶ 15.) On May 11, 2023, Decedent was admitted to Care Center for daily custodial care. (Declaration of Paige Farris (“Farris Decl.”) ¶ 2.) It is alleged that while Decedent was a resident of the Care Center, she was neglected and that Care Center failed to monitor, diagnosis and treat a urinary tract infection (“UTI”) which eventually contributed to Decedent’s death. (*Id.* ¶ 28.)